

HOUSE No. 3059

The Commonwealth of Massachusetts

PRESENTED BY:

Mike Connolly

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act promoting estate tax fairness.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>1/17/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>1/22/2025</i>

HOUSE No. 3059

By Representative Connolly of Cambridge, a petition (accompanied by bill, House, No. 3059) of Mike Connolly and Patrick Joseph Kearney relative to the taxation of transfers of certain estates. Revenue.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act promoting estate tax fairness.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 65A of the General Laws is hereby repealed.

2 SECTION 2. Chapter 65C of the General Laws, as appearing in the 2020 Official
3 Edition, is hereby amended by striking out section 2A and inserting in place thereof the
4 following section:-

5 Section 2A. (a) An excise tax is hereby imposed upon the transfer of the estate of each
6 person dying on or after January 1, 1997 who, at the time of death, was a resident. Section 3 shall
7 not apply for the purposes of computing the tax imposed by this section.

8 The excise tax shall be computed in accordance with the following rate schedule table:-

9	Federal Gross Estate	Rate of Tax
10	Not over \$2,000,000	None

11	Over \$2,000,000 but not over \$2,500,000	10%
12	Over \$2,500,000 but not over \$3,000,000	11%
13	Over \$3,000,000 but not over \$3,500,000	12%
14	Over \$3,500,000 but not over \$4,000,000	13%
15	Over \$4,000,000 but not over \$4,500,000	14%
16	Over \$4,500,000 but not over \$5,000,000	15%
17	Over \$5,000,000 but not over \$5,500,000	16%
18	Over \$5,500,000 but not over \$6,000,000	17%
19	Over \$6,000,000 but not over \$6,500,000	18%
20	Over \$6,500,000 but not over \$7,000,000	19%
21	Over \$7,000,000 but not over \$7,500,000	20%
22	Over \$7,500,000 but not over \$8,000,000	21%
23	Over \$8,000,000 but not over \$8,500,000	22%
24	Over \$8,500,000 but not over \$9,000,000	23%
25	Over \$9,000,000 but not over \$9,500,000	24%
26	Over \$9,500,000 but not over \$10,000,00	25%
27	Over \$10,000,000	30%

(b) An excise tax is hereby imposed upon the transfer of real property situated in the commonwealth and upon tangible personal property having an actual situs in this commonwealth of every person who at the time of their death was not a resident. The amount of this excise tax shall be calculated pursuant to the rate schedule in subsection (a).

(c) The estates of decedents dying on or after July 1, 2023 shall not be required to pay any excise tax under this section if the value of the federal gross estate is not more than \$2,000,000.

SECTION 4. This act shall take effect for taxable years beginning on or after January 1, 2025.